

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
REBECCA CUEVAS By Her Mother And Natural
Guardian, CHANTEL VAZQUEZ, and CHANTEL
VAZQUEZ Individually,

Filed:

INDEX NO.

Plaintiff,

Plaintiff designates New York
County as the place of trial.

-against-

S U M M O N S

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, LT. ALISON ESPOSITO and
DET. MATTHEW SGAMBATI, SHIELD NO.: 4473,

The basis of venue is the County in
which the cause of action arose.

Defendants.
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiffs' attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Brooklyn, New York
August 22, 2017


LAW OFFICES OF MILLER & MILLER
Attorneys for Plaintiff
26 Court Street, Suite 2511
Brooklyn, New York 11242
(718) 522-0023

To:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

LT. ALISON ESPOSITO
New York City Police Department
Manhattan Gang Unit, 23rd Precinct
New York, NY 10029

DET. MATTHEW SGAMBATI, SHIELD NO.: 4473
New York City Police Department
Manhattan Gang Unit, 23rd Precinct
New York, NY 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
REBECCA CUEVAS By Her Mother And Natural
Guardian, CHANTEL VAZQUEZ, and CHANTEL
VAZQUEZ Individually,

INDEX NO.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, LT. ALISON ESPOSITO and
DET. MATTHEW SGAMBATI, SHIELD NO.: 4473,

Defendants.
-----X

Plaintiff, by her attorneys, LAW OFFICES OF MILLER & MILLER, as and for their

Verified Complaint, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION
(FALSE ARREST)

1. The Plaintiff, CHANTEL VAZQUEZ is a resident of the County of New York, in the State of New York.
2. The Plaintiff CHANTEL VAZQUEZ is the Mother And Natural Guardian, of the infant Plaintiff REBECCA CUEVAS.
3. At all times herein mentioned, defendant THE CITY OF NEW YORK (hereinafter the "CITY"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
4. That at all times mentioned herein, defendant CITY operated, maintained, managed, and controlled the New York City Police Department.

5. That the New York City Police Department is an agency, instrumentality, and/or department of defendant CITY, and/or defendant CITY derived benefit from the activities of the New York City Police Department.

6. At all times herein mentioned the defendant, DET. MATTHEW SGAMBATI, SHIELD NO. 4473, was employed by the New York City Police Department as a police officer.

7. That at all times mentioned herein, defendant, DET. MATTHEW SGAMBATI, SHIELD NO. 4473, was acting within the scope of his employment as Police Office employed by the New York City Police Department.

8. That at all timed mentioned herein, defendant, DET. MATTHEW SGAMBATI, SHIELD NO. 4473, was acting under color of law and authority as a Police Officer employed by the New York City Police Department.

9. At all times herein mentioned the Defendant, LT. ALISON ESPOSITO was employed by the New York City Police Department as a police officer.

10. That at all times mentioned herein, Defendant, LT. ALISON ESPOSITO was acting within the scope of her employment as a police officer employed by the New York City Police Department.

11. That at all timed mentioned herein, Defendant, LT. ALISON ESPOSITO was acting under color of law and authority as a police officer employed by the New York City Police Department.

12. That the District Attorney is a policymaker of and for the CITY regarding the management, supervision, and training of Assistant District Attorneys in the Office of the District Attorney for the County of New York, State of New York.

13. That the DA and/or the CITY effectively promulgated policy, practices and/or customs, amounting to the deliberate indifference to, and impacting upon, the Plaintiff's civil rights, including but not limited to, those guaranteed by the Federal and State Constitutions, within the County of New York.

14. That said policy, practices, and/or customs, include stopping, frisking and detaining individuals, especially those of the Plaintiff's ethnic background, without probable cause, the use of excessive and unreasonable force, the fabrication of criminal complaints, the coercion and manipulation of witnesses, the arrest and detention of individuals known to have not committed any criminal wrong doing, and a failure to properly instruct, train and/or supervise employees, including LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, and others involved in the investigation and prosecution of Plaintiff in the underlying criminal action that is the subject hereof.

15. That the DA, and the CITY, perpetuated, or failed to take steps to terminate, said policy, practices and/or customs, did not discipline or otherwise properly supervise the individual personnel who were allowed to and did engage in them, did not effectively instruct, train and/or supervise such personnel, including individual police officers, detectives, investigators, and Asst. District Attorneys, with regard to the proper constitutional and statutory requirements in the exercise of their authority, but instead ignored, condoned and/or sanctioned the offending policies, practices and/or customs with a deliberate indifference to their effect on the individual constitutional rights of the Plaintiff and persons similarly situated.

16. That the Plaintiff has served notice, in accordance with applicable statutes, on the Defendants and that at least 30 days have elapsed since the service of such notice and that adjustment or payment thereof has been neglected or refused.

17. That the Plaintiff has fully complied with defendants demand for examination or that said demand has been otherwise waived.

18. That their action is being commenced within one year and ninety days after the happening of the event upon which the claim is based.

19. On January 1, 2016, the Defendants, their agents servants and employees, including but not limited to LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473 did unlawfully enter the residence known as 345 East 101 Street, Apt. 4F, New York, New York, 10029.

20. On January 1, 2016, while inside of the premises known 345 East 101 Street, Apt. 4F, New York, New York, 10029, the Defendants, their agents servants and employees, including but not limited to LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, did unlawfully stop, assault, frisk, handcuff, detain, arrest and imprison the Infant Plaintiff REBECCA CUEVAS.

21. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

22. That the Defendants did act individually and together to arrest, imprison and prosecute the Plaintiff to facilitate the concealment of acts committed by the Defendants

including the assault of the Plaintiff by the Defendants, which violated the civil rights of the Plaintiff.

23. That defendant CITY, through its agents, servants and/or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of the Plaintiff.

24. On information and belief, that the conduct of the defendant CITY's agents, servants and/or employees, including LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, in investigating the criminal allegations made against the Plaintiff did deviate so egregiously from acceptable Police Department activity as to demonstrate an intentional or reckless disregard for proper Police Department procedure.

25. On information and belief, the defendant CITY's agents, servants and/or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, in investigating the criminal allegations made against the Plaintiff did fail to make further inquiry into the allegations set forth against the Plaintiff although a reasonable person would have done so and thereby established a lack of probable cause against the Plaintiff.

26. At the time of their unlawful arrest and imprisonment, the Plaintiff had not committed or attempted to commit any illegal act.

27. At the time of the Plaintiff's unlawful arrest and imprisonment, the defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment was false and without probable cause.

28. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint(s).

29. The aforesaid false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses, and damage to their reputation.

30. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff, and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

31. Due to defendants' negligence, Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
(MALICIOUS PROSECUTION)

32. Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above as if fully set forth herein.

33. The Defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against the Plaintiff in the Criminal Court of the City of New York, County of New York, upon the filing of an accusatory instrument without probable cause, under Docket Number 2016NY001146. Said malicious prosecution continued until May 25, 2016, when it was dismissed.

34. In commencing and continuing the said malicious prosecution, defendants caused the Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

35. The Plaintiff had not committed or attempted to commit any illegal act(s).

36. The Plaintiff had not given defendant CITY, its agents, servants and/or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, probable cause to believe that she had committed the falsely charged illegal acts.

37. The Defendants knew, or should have known through the exercise of reasonable care and proper police department procedure, that the said investigation into this matter was flawed and incomplete.

38. That the Defendants maliciously, knowingly, and intentionally caused and were otherwise deliberately indifferent to, the presentation of materially false testimony and evidence which resulted in the criminal complaint(s) being filed against the Plaintiff.

39. The defendant CITY, its agents, servants and/or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, wilfully, negligently and wrongfully accused the Plaintiff of having committed acts in violation of the Penal Law of the State of New York.

40. The defendant CITY, its agents, servants and/or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, wilfully, negligently and wrongfully continued to prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York, even though the defendants knew or should have known of facts

and circumstances that would have lead a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of the Plaintiff was, therefore, improper under the circumstances.

41. That, on information and belief, the Defendants did negligently, willfully and maliciously fabricate inculpatory evidence and withhold exculpatory evidence and did manipulate, intimidate, and/or coerce witnesses to improperly implicate the Plaintiff in the underlying criminal action.

42. That, on information and belief, the Defendants did negligently, willfully and maliciously fabricate official records and documents, and did wrongfully file the same to cause, and in support of, the arrest and prosecution of the Plaintiff.

43. That the DA and/or the CITY effectively promulgated policy, practices and/or customs, amounting to the deliberate indifference to, and impacting upon, the Plaintiff's civil rights, including but not limited to, those guaranteed by the Federal and State Constitutions, within the County of New York, and said policies include, but are not limited to, the withholding of exculpatory evidence by ADAs and employees and members of the New York City Police Department, stopping, frisking, handcuffing and detaining individuals, especially those of the Plaintiff's ethnic background, without probable cause, the use of excessive and unreasonable force, the fabrication of criminal complaints, the arrest and detention of individuals known to have not committed any criminal wrong doing, the manipulation, coercion and intimidation of witnesses and the countenance of acts of misbehavior by employees and members of the New York City Police Department and the Office of District Attorney, New York County, including

the violation of the civil rights of the Plaintiff and persons similarly situated, and the failure to properly instruct, train and/or supervise employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, and others involved in the investigation and prosecution of Plaintiff in the underlying criminal action that is the subject hereof.

44. That the DA and/or the CITY effectively promulgated policy, practices and/or customs, amounting to the deliberate indifference to, and impacting upon, the Plaintiff's civil rights, including but not limited to, those guaranteed by the Federal and State Constitutions, within the County of New York, and said policies include, but are not limited to, the filing of knowingly false and/or fabricated criminal complaints by ADAs and/or employees and members of the New York City Police Department, to protect employees and members of the New York City Police Department who have engaged in acts amounting to excessive force, assault and battery of civilians, especially those of the Plaintiff's ethnic background.

45. That the DA, and the CITY, perpetuated, or failed to take steps to terminate, said policy, practices and/or customs, did not discipline or otherwise properly supervise their personnel who were allowed to and did engage in them, did not effectively instruct, train and/or supervise such personnel, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, with regard to the proper constitutional and statutory requirements in the exercise of their authority, but instead sanctioned the offending policies, practices and/or customs with a deliberate indifference to their effect on the individual constitutional rights of the Plaintiffs and persons similarly situated.

46. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continue to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of wages, legal expenses and damage to their reputations.

47. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

48. Due to defendants' negligence, the Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
(INFLECTION OF EMOTIONAL DISTRESS)

49. The Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above as if fully set forth herein.

50. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

51. Defendants acted with the desire and intent to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

52. Defendants intentionally, knowingly, wilfully, recklessly, negligently and wrongfully caused Plaintiffs emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

53. Defendants acted with utter disregard of the consequences of their actions.

54. As a result, Plaintiff was caused to suffer the infliction of emotional distress.

55. The Defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

56. Due to defendants' negligence, the Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
(NEGLIGENCE)

57. The Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above as if fully set forth herein.

58. The actions of defendant CITY, through its agents, servants and/or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, heretofore described constitutes negligence in that defendant CITY negligently trained or failed to train its agents, servants, or employees, especially including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473.

59. The actions of defendant CITY, through its agents, servants, or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, heretofore described constitutes negligence in that defendant CITY negligently supervised or failed to supervise its agents, servants, or employees, especially including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473.

60. The actions of defendant CITY, through its agents, servants, or employees, including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, heretofore described constitutes negligence in that defendant CITY negligently disciplined or failed to discipline its agents, servants, or employees, especially including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473.

61. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, especially including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions.

62. Defendant CITY was negligent in its retention of its agents, servants and/or employees, especially including defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

63. That the defendants, their agents, servants, and/or employees were otherwise, and in general, careless, reckless and negligent under the circumstances existing as previously described.

64. All of the causes of action of their complaint are specifically excepted under C.P.L.R. § 1602.

65. As a result of the negligence of defendants CITY, LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, without any negligence on the part of Plaintiff, Plaintiff was caused to suffer severe and permanent personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, and loss of wages, legal expenses, and damage to his reputation.

66. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

67. Due to defendants' negligence, Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
(ASSAULT/BATTERY/NEGLIGENT CONTACT)

68. The Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above as if fully set forth herein.

69. That the acts of Defendant LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, along with those acts of the other police officers who's identities are presently unknown to the Plaintiff caused the Plaintiff to apprehend and/or fear unfriendly contact.

70. That on or about January 1, 2016, Defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, did without cause or justification, utilize acts amounting to an assault and battery of the Plaintiff, in violation of the Plaintiff's civil rights.

71. That on or about January 1, 2016, Defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, did without cause or justification, forcibly stop, frisk, handcuff and detain the Plaintiff, and during said stop, frisk, handcuffing and detention, did utilize acts amounting to excessive force, in violation of the Plaintiff's civil rights.

72. A reasonable person in the same circumstances as the Plaintiff, would have apprehended and/or feared unfriendly contact.

73. Defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473 and the other police officers who's identities are presently unknown to the Plaintiff assaulted the Plaintiff.

74. Defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473 were in the employ of the defendants, when Plaintiff was assaulted.

75. The assault and battery, as aforesaid, were within the scope of Defendants', LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, employment.

76. The defendants assaulted and battered the Plaintiff.

77. Defendants' LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473 acts, along with those acts of the other police officers who's identities are presently unknown to the Plaintiff, were intended to make contact with the Plaintiff.

78. Defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473 and the other police officers who's identities are presently unknown to the Plaintiff made contact with the Plaintiff.

79. Defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473 and the other police officers who's identities are presently unknown to the Plaintiff battered Plaintiff.

80. The battery as aforesaid, was within the scope of Defendants', LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473, employment.

81. The defendants battered the Plaintiff.

82. At all times herein mentioned, the person of Defendants LT. ALISON ESPOSITO, and DET. MATTHEW SGAMBATI, SHIELD NO. 4473 and that of the other police officers who's identities are presently unknown to the Plaintiff, negligently, carelessly and recklessly came into harmful contact with the person of the Plaintiff.

83. The Plaintiff was thereby caused to be injured on or about January 1, 2016.

84. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

85. Due to defendants' actions, Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
(VIOLATION OF CIVIL RIGHTS)

86. The Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above as if fully set forth herein.

87. The actions of defendants heretofore described resulting from arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution which deprived the Plaintiffs of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the assault, stopping, frisking and detaining individuals, especially those of the Plaintiff's ethnic background, without probable cause, the use of excessive and unreasonable force, the fabrication of criminal complaints, the manipulation, coercion and intimidation of witnesses, the arrest and detention of individuals known to have not committed any criminal wrong doing and the hiring, training, supervision, retention and discipline of the defendant CITY's agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons who are of the Plaintiff's ethnic descent.

88. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the New York City Police Department of excessive force and acts of misconduct against civilians, and especially those civilians who are of the Plaintiff's ethnic descent, and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

89. That the DA and/or the CITY effectively promulgated policy, practices and/or customs, amounting to the deliberate indifference to, and impacting upon, the Plaintiff's civil rights, including but not limited to, those guaranteed by the Federal and State Constitutions, within the County of New York, and said policies include, but are not limited to, the filing of knowingly false and/or fabricated criminal complaints by ADAs and/or employees and members of the New York City Police Department, to protect employees and members of the New York City Police Department who have engaged in acts amounting to excessive force, assault and battery of civilians, especially those of the Plaintiff's ethnic background.

90. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating ADA's and members of the New York City Police Department in their withholding of exculpatory evidence and their countenance of the use by the New York City Police Department of fabricated evidence and criminal complaints and the use of excessive force and acts of misconduct against civilians, and especially those civilians who are of the Plaintiff's ethnic descent, and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

91. That the Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and especially those civilians who are of the

Plaintiff's ethnic descent, and established a custom policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by ADAs and the New York City Police Department, including but not limited to the assault, stopping, frisking, detention and arrest of persons without probable cause, the use of excessive force, the fabrication of criminal complaints and evidence, the withholding of exculpatory evidence and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

92. The defendants have deprived the Plaintiff of her liberty in violation of their civil and constitutional rights as set forth in the United States Constitution, 42 U.S. C. § 1983 and the Constitution of the State of New York.

93. The defendants actions were undertaken under color of law and would not have existed but for said defendants' use of their official power.

94. That the defendants conspired with each other and acted in concert to discriminate against and deprive the Plaintiffs of their Constitutional and Civil rights.

95. The supervisors and policy making officers of defendant CITY and its New York City Police Department, and the Office of the District Attorney, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

96. The defendant CITY has failed to properly or effectively train its agents, servants and/or employees, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

97. The defendant CITY has sanctioned the policy and practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.

98. That the defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

99. By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

100. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

101. Due to defendants' actions, Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
(ATTORNEYS' FEES)

102. The Plaintiff repeats and reiterates the allegations contained in the paragraphs numbered above as if fully set forth herein.

103. The actions of defendants heretofore described resulting from the arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff,

constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution which deprived the Plaintiffs of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the stopping, frisking and detaining individuals, especially those of the Plaintiff's ethnic background, without probable cause, the use of excessive and unreasonable force, the fabrication of criminal complaints, manipulation, coercion and intimidation of witnesses, the arrest and detention of individuals known to have not committed any criminal wrong doing and the hiring, training, supervision, retention and discipline of the defendant CITY's agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons who are of the Plaintiff's ethnic descent.

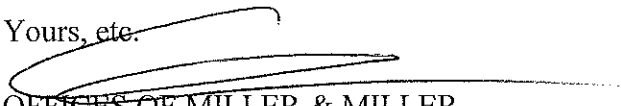
104. That the Plaintiff has incurred significant attorneys' fees in the prosecution of the above referenced claims against the defendants. That in the event that the Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be prevailing parties within the meaning of 42 USC § 1988 and entitled to the recovery of said attorneys fees from the defendants.

105. As a result, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff respectfully request judgment against the defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of their action.

Dated: Brooklyn, New York
August 22, 2017

Yours, etc.


OFFICES OF MILLER & MILLER
Attorney for Plaintiff
26 Court Street, Suite 2511
Brooklyn, New York 11242
(718) 522-0223

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) s.s.:

I, REBECCA CUEVAS, BY HER M/H/G CHANTEL VAZQUEZ, being duly sworn, deposes and says: I am the PLAINTIFF in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT, and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:
Available records and investigation.

Chantel Vazquez
CHANTEL VAZQUEZ
M/H/G OF REBECCA CUEVAS

Sworn to before me on this the
22nd day of August, 2017

[Signature]
ANDREW MILLER, ESQ.
Notary Public, State of New York
No. 02MIG029076
Qualified in Nassau County
Commission Expires August 9, 2017
Notary Public

SUPREME COURT

STATE OF NEW YORK, COUNTY OF NEW YORK

Index No.

Year 2017

REBECCA CUEVAS BY HER MOTHER AND NATURAL
GUARDIAN, CHANTEL VAZQUEZ, AND CHANTEL VAZQUEZ,
INDIVIDUALLY,

PLAINTIFFS,

- AGAINST -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
LT. ALISON ESPOSITO AND DET. MATTHEW SGAMBATI, SHIELD
NO. 4473,

DEFENDANTS.

SUMMONS AND VERIFIED COMPLAINT

MILLER & MILLER, ESQS.

ATTORNEYS AT LAW

Attorney(s) for

PLAINTIFFS

Office and Post Office Address, Telephone

26 Court Street, Ste. 2511

BROOKLYN, NY 11242

TEL (718) 522-0023

FAX (718) 522-0024

To

Signature (Rule 130-1.1-a)

Print name beneath

ANDREW MILLER, ESQ.

Service of a copy of the within is hereby admitted.

Attorney(s) for

Dated: _____

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
will be presented for settlement to the HON.
within named Court, at

of which the within is a true copy
one of the judges of the

on

at

M.

Dated,

Yours, etc.

MILLER & MILLER, ESQS.